

TAB 12



Board of Education Report

File #: Rep-333-25/26, **Version:** 1
In Control: Facilities Contract Actions

Agenda Date: 4/21/2026

Delegations of Authority for Procurement and Facilities Contracts Amendment

Procurement Services Department - Facilities Contracts

Brief Description:

(Delegations of Authority for Procurement and Facilities Contracts) Recommends approval of an amendment to the Procurement and Facilities Contracts Delegations of Authority to update the type and value of construction contract actions that may be exercised under delegated authority, with an effective date of April 21, 2026.

Action Proposed:

Approval of an amendment to the Procurement and Facilities Contracts Delegations of Authority to update the type and value of construction contract actions for Board-approved Facilities projects that may be exercised under delegated authority, as detailed below and in Attachment A (section iii), with an effective date of April 21, 2026:

(iii) Construction

Contracts for construction as permitted by and in accordance with the California Public Contract Code and California Education Code (including, without limitation, publicly bid contracts, job order contracts, informal A and B letter agreements, takeover and completion contracts, contracts pursuant to Public Contract Code section 20119 et seq. ("best value,"), contracts pursuant to California Education Code section 17250.10 et seq. ("design build"), contracts pursuant to California Education Code section 17250.60 et seq. ("alternative design build"), contracts pursuant to California Education Code section 20118.5 et seq. (task order contracting) and contracts pursuant to California Education Code section 17406 ("lease-leaseback") up to \$85 \$145 million per contract for approved Facilities projects.

Contracts for routine repair and general maintenance up to \$1 million.

Notwithstanding the foregoing, the authority to execute contracts pursuant to California Education Code section 17515 ("joint occupancy") is expressly excluded from this delegation of authority.

Background:

On May 8, 2018 (Board Report No. 444-17/18), the Board of Education adopted updated delegations of authority for Procurement and Facilities contracts. Since then, the Legislature has amended and authorized new construction procurement methods - including best value and alternative design-build. Additionally, construction costs across the District's portfolio have increased significantly, with a number of large, time-sensitive projects now expected to exceed the current not-to-exceed amount authorized under delegated authority. Raising the value of the delegation to \$145 million aligns with current market conditions. Moreover, it is projected to save up to two months per affected Board-approved project by enabling the District to execute contracts and proceed with construction while bringing those contract actions back to the Board to ratify, rather than holding execution until the Board authorizes the execution of the contract.

The proposed updated value for delegated construction contract actions aligns with California Construction Cost Index (CCCI) averages for the Los Angeles and San Francisco regions, published monthly by the California Department of General Services (DGS). Between the period of December 2015 to December 2025, the CCI for these regions had a 68% cumulative increase in construction costs. When applied to the current \$85 million threshold, the value today equates to \$142.8 million, which has been rounded to \$145 million.

Expected Outcomes:

Approval to update the type and value of construction contract actions that may be exercised under delegated authority for Board-approved projects will enable the LAUSD to continue to award, manage and enforce contracts in support of the District's operational and facilities programs, while reducing administrative effort, time and costs.

Board Options and Consequences:

Approving the updated delegation will enable the District to expedite contract actions and will allow the District to continue to award, manage and enforce contracts in support of the LAUSD's building and modernization program, and operational work, while reducing administrative effort, time and costs.

Not authorizing or delaying the update to the delegation of authority would decrease efficiency efforts and increase administrative, project and legal costs. All delegated actions will continue to be submitted to the Board for ratification in accordance with the California Education Code, Government Code, Public Contract Code and all other applicable statutory provisions.

Policy Implications:

This action supports the Board's initiative to streamline processes, enhance efficiency, and reduce expenditures.

Budget Impact:

The amendment supports contract actions presented that are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

Student Impact:

The amendment supports contract actions necessary to implement Board-approved facilities projects that help ensure students are provided with safe and healthy environments, and up-to-date facilities that promote learning.

Equity Impact:

Not Applicable

Issues and Analysis:

The amendment does not result in policy implications on the agreements brought before the Board.

Attachments:

Attachment A - District Delegation Form

Previously adopted Board report referenced in the policy implications section:

- Adopted May 8, 2018: [Board Report #444-17/18 <https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view?usp=drive_link>](https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view?usp=drive_link)

Submitted:

03/26/26

RESPECTFULLY SUBMITTED,


ANDRES E. CHAIT
Acting Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


SAMAN BRAVO-KARIMI
Chief Financial Officer
Office of Chief Financial Officer

REVIEWED BY:


KURT E. JOHN
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

APPROVED & PRESENTED BY:


MATTHEW A. FRIEDMAN
Chief Procurement Officer
Procurement Services Division

REVIEWED BY:


KRISZTINA TOKES
Chief Facilities Executive

☒ Approved as to facilities impact

DISTRICT DELEGATION FORM

Select One:

☒ Fiscal Delegation (to enter contracts)

Del. No. _____

☐ Operational Delegation (to perform a non-fiscal operation)

Requesting Division: **Procurement Services Division**

Delegation Title: **Delegations of Authority for Procurement and Facilities Contracts**

Select One: ☐ NEW DELEGATION ☒ AMENDED DELEGATION

Date: 03/10/2026

Board Report No.: 333-25/26

Delegation No.: _____

Amendment No.: 8

DESIRED TEXT OF DELEGATION (*Underline Amended Language if Applicable*)

Contracts for construction as permitted by and in accordance with the California Public Contract Code and California Education Code (including, without limitation, publicly bid contracts, job order contracts, informal A and B letter agreements, and takeover and completion contracts, contracts pursuant to Public Contract Code section 20119 et seq. ("best value,"), contracts pursuant to Education Code 17250.10 et seq. ("Design Build"), contracts pursuant to Education Code 17250.60 et seq. ("Alternative Design Build"), contracts pursuant to 20118.5 et seq. (Task Order Contracting) and contracts pursuant to California Education Code section 17406 ("lease-leaseback") up to \$145 million per contract for approved Facilities projects.

PRIOR TEXT OF DELEGATION (*If Amended Above*)

Contracts for construction as permitted by and in accordance with the California Public Contract Code and California Education Code (including, without limitation, publicly bid contracts, job order contracts, informal A and B letter agreements, and takeover and completion contracts, contracts pursuant to Public Contract Code section 20119 et seq. ("best value,"), and contracts pursuant to California Education Code section 17406 ("lease-leaseback") up to \$85 million per contract for approved Facilities projects.

Original Authority: _____

PRIOR AMENDMENTS:

Date:	Amendment No.:	Board Report No.:	Date:	Amendment No.:	Board Report No.:
<u>4/10/2012</u>	<u>1</u>	<u>211 - 11/12</u>	<u>5/10/2016</u>	<u>5</u>	<u>311 - 15/16</u>
<u>4/16/2013</u>	<u>2</u>	<u>200 - 12/13</u>	<u>5/09/2017</u>	<u>6</u>	<u>463 - 16/17</u>
<u>6/10/2014</u>	<u>3</u>	<u>474 - 13/14</u>	<u>5/08/2018</u>	<u>7</u>	<u>444 - 17/18</u>
<u>5/12/2015</u>	<u>4</u>	<u>461 - 14/15</u>	_____	_____	_____

_____	_____	_____	_____	_____	_____
_____	_____	_____	_____	_____	_____

Signature

Matthew Friedman, Chief Procurement
Officer

Division Head/Sr. Administrator (Print Name)

Date Submitted: March 26, 2026

Signature

Executive Officer of the Board

Office of the Board Secretariat (Print Name)

Date Received: _____

To Be Completed by the Board Secretariat Only:

Board Approval: ☐ Yes ☐ No

Board Approval Date: _____